

The ethics of Facial Recognition AI: Privacy vs. Security

In the last decade, AI is increasingly being deployed by governments and law enforcement in public spaces in many jurisdictions all around the world. Facial recognition is one of the most visible and controversial examples, opening up discussion on a wide range of ethical issues. At a high level, the ethical considerations include fairness, accountability, transparency, and privacy. This article focuses specifically on the opposing forces between individual privacy rights and public security benefits.

Some government and law enforcement agencies have argued that facial recognition enables faster suspect identification and crime deterrence (Introna & Nissenbaum, 2010). The ability of AI to augment human identification capability gives authorities a higher degree of confidence that they have made a correct identification. Beyond anecdote, there is emerging documented support for these claims. A study analyzing 268 U.S. cities between 1997 and 2020 found that police use of facial recognition was associated with measurable reductions in violent crime and homicide *rates without increasing racial disparities in arrests* (Johnson et al., 2024). Cities that adopted the technology earlier in the study period saw greater benefits over time, suggesting that the public safety case for facial recognition, when responsibly deployed, is real.

On the other hand, privacy advocates point to significant concerns. For example, mass surveillance in public spaces erodes a reasonable expectation of privacy (Zuboff, 2019). Furthermore, data collected can be misused, hacked, or repurposed beyond its original intent. A prominent example is the 2021 case in which Facebook was ordered to pay \$650 million for collecting and storing users' biometric facial data without their explicit consent, in violation of Illinois privacy law (*In re Facebook Biometric Information Privacy Litigation*, 2021). And chillingly, as has been demonstrated in multiple studies, people tend to modify their behaviour when they know they are being watched (Penney, 2016). The very people facial recognition is attempting to track are therefore likely to modify their behaviour in ways that make AI tracking more difficult.

One reality in the privacy vs. security debate is that security gains are immediate and visible, whereas privacy erosion is gradual and harder to measure. It is therefore tempting in the shorter term for government and law enforcement stakeholders to favour security over privacy. Two major problems remain. First, citizens typically have no meaningful consent or opt-out mechanism, and are thus being monitored in contravention of a fundamental right to privacy. Second, governmental oversight often lags behind the pace of deployment. This is an unfortunate yet unavoidable byproduct of a rapidly evolving technological landscape and an all too human bureaucratic one, fraught with political considerations and competing interests.

There are several ways to help reconcile the tension between privacy and security, some more innovative than others. Governments could introduce comprehensive legislation restricting where and how facial recognition can be used, though any policies are bound to be debated and challenged as part of the democratic process. More proactively, legislators could embed sunset clauses into surveillance legislation, requiring that the legal basis for any facial recognition program be actively renewed at regular intervals rather than allowed to persist by default, placing the burden of justification on the state rather than on citizens (Quinonez, 2024). At the technical level, developers could adopt a privacy-by-design approach, building privacy protections directly into the architecture of facial recognition systems from the outset rather than bolting them on after deployment. They could, for example, store anonymized biometric templates rather than raw facial images, and automatically purge data after a defined retention period (Ahmed, 2025). Finally, independent oversight bodies with authority to audit and suspend systems could provide meaningful accountability, though in the real world of competing priorities and limited budgets, such bodies require dedicated political will to be effective.

In conclusion, neither security nor privacy is absolute, and the record shows there are legitimate arguments on both sides. The challenge for stakeholders is finding a defensible balance. Without clear regulation, the default favours surveillance over rights. This is a problem exacerbated by a relative lack of political appetite to address the issue. Responsible AI deployment must treat privacy as a right, not an obstacle.

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